

Tentative Rulings for August 18, 2026
Department 503

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

24CECG03484 *Punjab Trucks, Inc. v. Gopi Truck and Trailer Repair, Inc.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

25CECG00283 *K.U. v. Daniel Dzung Nguyen, M.D.* is continued to Tuesday, September 22, 2026, at 3:30 p.m. in Department 503.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 503

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Tentative Ruling

Re: **Stevens v. Nguyen, et al.**
Superior Court Case No. 25CECG00331

Hearing Date: August 18, 2026 (Dept. 503)

Motion: by Plaintiff for Leave to File a First Amended Complaint

Tentative Ruling:

To grant. Plaintiff shall serve and file his first amended complaint within 10 days of the date of service of this order.

Explanation:

“ ‘Code of Civil Procedure section 473, which gives the courts power to permit amendments in furtherance of justice, has received a very liberal interpretation by the courts of this state.... In spite of this policy of liberality, a court may deny a good amendment in proper form where there is unwarranted delay in presenting it.... On the other hand, where there is no prejudice to the adverse party, it may be an abuse of discretion to deny leave to amend.’ [Citation.] ‘In the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial.... Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.’ [Citation.]” (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159.)

“While a motion to permit an amendment to a pleading to be filed is one addressed to the discretion of the court, the exercise of this discretion must be sound and reasonable and not arbitrary or capricious. And it is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’ If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court of Cal. In and For Los Angeles County* (1959) 172 Cal.App.2d 527, 530, internal citations omitted.)

California Rules of Court, Rule 3.1324 sets for the technical requirements for a motion to amend. Subdivision (a) requires that the additions and deletions are identified. Subdivision (b) requires a declaration to accompany the motion to amend, and further requires it to specify: “(1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.”

The moving papers in the case at bench are technically sufficient. The proposed first amended complaint designates additions to the original complaint, limited to the

second cause of action, with underline, and the declaration states there are no deletions to the first cause of action. (Cal. Rules of Court, rule 3.1324, subd. (a).) The court notes the first cause of action is omitted from the attachment to counsel's declaration. The declaration accompanying the motion is sufficient. (*Id.* at rule 3.1324, subd. (b).) The effect of the amendment is to add a new cause of action alleging defendants acted to transfer assets to avoid satisfying plaintiff's pending personal injury claims. (Nunes Decl. ¶ 2.) The facts giving rise to the amendment were learned after counsel hired a private investigator to perform a search of defendants' assets in April 2026 and as a result the amendments could not have been made earlier. (*Id.* at ¶¶ 4-5.)

Defendants raise concerns of the merits of the amendment. The court will not engage in analysis of the merits of the proposed amendment on this motion, turning it into a demurrer (or even a summary judgment motion). Such analysis is premature at this juncture. Generally, analysis of legal insufficiency supporting denial of leave to amend is in the nature of a legal bar that cannot possibly be cured by amendment (such as a statute of limitations, or *res judicata*). (See *Yee v. Mobilehome Park Rental Review Bd. (City of Escondido)* (1998) 62 Cal.App.4th 1409, 1429.) No such factor is here.

Defendants additionally argue they are prejudiced by plaintiff's amendment with trial less than 90 days away. The court agrees that the new cause of action is of a wholly different nature than the original negligence claims and will require additional discovery. However, as there have been no previous trial continuances and there remains time to conduct discovery for the current trial date these circumstances do not necessarily show actual prejudice.

The opposition relies on *Hayutin v. Weintraub* (1962) 207 Cal.App.2d 497 in support of finding actual prejudice in the addition of a new cause of action of a completely different nature. The circumstances here are distinguishable from those of *Hayutin*, where leave was sought on the eve of trial and witnesses from out of state were present for trial. (*Id.*, at p. 507.) Additionally, in *Hayutin* a previous trial continuance had been granted on the condition that no application to amendment of the pleadings be made before trial. (*Id.* at p. 504.) It was also questionable whether the moving party's prior counsel could have sought to amend the pleading at an earlier time. (*Id.* at p. 506.)

In light of the great liberality in allowing substantive amendments to the pleadings, the court intends to grant plaintiff's motion for leave to file the First Amended Complaint.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/14/2026.
(Judge's initials) (Date)

(46)

Tentative Ruling

Re: ***Eva Contreras v. General Motors LLC***
Superior Court Case No. 25CECG04743

Hearing Date: August 18, 2026 (Dept. 503)

Motion: by Plaintiff for Attorney's Fees

Tentative Ruling:

To grant an award of attorney's fees in the reduced amount of \$10,543.10. Payment shall be made by defendant General Motors, LLC. to the Law Office of Patrea R. Bullock within 30 days of the clerk's service of the minute order.

Explanation:

Under Civil Code section 1794 subdivision (d), if a buyer prevails in an action under the Song Beverly Act, the buyer "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of the action." (Civ. Code, § 1794, subd. (d).)

Prevailing Party

The parties agreed that Plaintiff is the prevailing party for purposes of a fees motion. (Bullock Decl., ¶ 17, Exh. B at ¶ 5.)

Calculating the Fees

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) In determining the reasonable amount to award, "the court should consider ... 'the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorney's efforts, his learning, his age, and his experience in the particular type of work demanded [citation]; the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed.'" (*Ibid.*) An award of costs must be "reasonably necessary to the conduct of the litigation" and shall be "reasonable in amount." (Code Civ. Proc., § 1033.5 subd. (c)(2), (c)(3).) Plaintiff as the moving party bears the burden to prove the reasonableness of the number of hours devoted to this action. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1325.)

Reasonable Time Expended

A trial court may not rubberstamp a request for attorney fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182

Cal.App.4th 259, 271.) A court assessing attorney's fees begins with a touchstone or lodestar figure, based on the "careful compilation of the time spent and reasonable hourly compensation of each attorney . . . involved in the presentation of the case." (*Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48.) Lodestar refers to the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

Plaintiff claims a total of 26.3 billable hours (comprised of 23.3 hours reflected in billing entries and an additional 3 hours for the subsequent Reply to the Opposition). Plaintiff provides a printout of the billing entries. (See Bullock Decl., ¶ 21, Exh. E.) The court considers Defendant's challenges to the billing entries.

Defendant argues that certain entries are not recoverable or should be reduced, as they are clerical or administrative tasks, or excessive time was spent.

Clerical Tasks

Purely clerical or secretarial tasks should not be billed at a lawyer or paralegal's usual rate, regardless of who performs them. (*Missouri v. Jenkins* (1989) 491 U.S. 274, 288, fn. 10.) Calendaring, preparing proofs of service, internal filing, preparing binders for a hearing, and scanning are examples of tasks that have been found to be purely clerical and thus noncompensable or compensable at a reduced billing rate. (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187; *Ridgeway v. Wal-Mart Stores Inc.* (N.D. Cal. 2017) 269 F.Supp.3d 975, 991.) Nor does recording a note to the file or an email to an attorney about the task make clerical time billable time. Here, the court will reduce 1.2 hours of billing as hours representing tasks purely clerical in nature.

Excessive Time

Defendant challenges the amount of time attributed to client intake, case initiation, and the complaint package as excessive. Upon reviewing the challenged entries, the court will implement a minimal reduction of 0.5 hours.

Defendant challenges the amount of time attributed to review of disclosures. Upon reviewing the challenged entries, the court will implement a reduction of 0.5 hours.

Defendant challenges the amount of time attributed to preparing for Plaintiff's deposition. Depositions are not one-size-fits-all, and there are more variables than standard document review. Upon reviewing the challenged entries, the court finds the time was reasonable and not excessive. No deductions will be taken.

Defendant challenges the amount of time attributed to e-mail communications. Upon reviewing the challenged entries, the court will implement a reduction of 2 hours.

With respect to the objections to the excessive amount of time billed to complete the present fees motion, the court agrees some discount is warranted. The court will reduce the hours for this motion from 4.1 to 2 hours, and allow an additional hour for the Reply.

Thus, the overall billable hours (including for the present motion and reply papers) is reduced to 18 hours.

Reasonable Hourly Compensation

Reasonable hourly compensation is the “hourly prevailing rate for private attorneys **in the community** conducting noncontingent litigation of the same type.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133, emphasis added.) Ordinarily, “the value of an attorney’s time . . . is reflected in his normal billing rate.” (*Mandel v. Lackner* (1979) 92 Cal.App.3d 747, 761.)

The rates for out-of-town counsel are generally higher than Central California’s going rates for comparable consumer litigators. Plaintiff’s counsel is out town. The hourly rate charged by the attorney is \$650.00. Where a party is seeking out-of-town rates, he or she is required to make a “sufficient showing...that hiring local counsel was impractical.” (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1244.)

Having reviewed the qualifications of Ms. Bullock, the sole timekeeper, the requested billing rate is not reasonable based on local rates. Plaintiff made no showing that local counsel practicing “Lemon Law” and Song-Beverly consumer litigation are not available. That counsel’s rates have been found reasonable in courts in other counties (e.g. Alameda and San Mateo Counties) is not persuasive. The court intends to award fees based on local rates. In light of her extensive time as an attorney and her experience in this practice area, the court finds the reasonable value of her services to be \$550.00.

Lodestar and Total Award of Fees

Having reviewed the hourly rates and the hours billed, the lodestar is set at \$9,900.00. The motion for an award of attorney’s fees is granted in the amount of \$9,900.00.

Costs

In Song-Beverly Act cases, Civil Code section 1794, subdivision (d), provides for an award of not only “costs”, but also “expenses” to the prevailing buyer if the costs and expenses were reasonably incurred in the commencement and prosecution of the action. Courts have interpreted the term “expenses” to mean that the trial court has discretion to award more than just the costs provided under section 1033.5, and that the court may grant other costs that were reasonably incurred by the buyer in connection with the commencement and prosecution of the action. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138, [finding trial court should not have denied plaintiff’s request for expert witness fees simply because they were not permitted under section 1033.5]; disapproved on other grounds by *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189.)

If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. (*Hooked Media*

Group, Inc. v. Apple Inc. (2020) 55 Cal.App.5th 323, 338.) The losing party does not meet this burden by arguing that the costs were not necessary or reasonable but must present evidence to prove that the costs are not recoverable. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224.) If the claimed items are not expressly allowed by statute and are objected to by a motion to tax costs, the burden of proof is on the party claiming them as costs to show that the charges were reasonable and necessary. (*Foothill-De Anza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29.)

Costs here are sought via declaration. Though Plaintiff did not file a memorandum of costs, Plaintiff verifies the costs sought under penalty of perjury. (Bullock Decl., ¶ 22, Exh. E; Bullock Supp. Decl., ¶ 4-6, Exh. A.) Receipts as evidence of costs is provided. (*Ibid.*) The items sought consists primarily of filing and service fees. The court finds the costs are reasonable and allowable. Costs are awarded in the amount of \$643.10.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/14/2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: **Reed v. California Highway Patrol**
Superior Court Case No. 25CECG04900

Hearing Date: August 18, 2026 (Dept. 503)

Motion: Defendant's Demurrer to the Complaint

Tentative Ruling:

To sustain defendant California Highway Patrol's demurrer to the Complaint, without leave to amend. (Code Civ. Proc., § 430.10, subd. (e).) The prevailing party is directed to submit to this court, within seven days of service of the minute order, a proposed judgment dismissing the action as to the demurring defendant.

Explanation:

Government Code section 815 provides that "[e]xcept as otherwise provided by statute...[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." In other words, "all government tort liability must be based on statute." (*County of San Bernardino v. Superior Court* (2022) 77 Cal.App.5th 1100, 1107 [emphasis added]; Gov. Code, § 810, et seq.) "[I]n the absence of some constitutional requirement, public entities may be liable only if a statute declares them to be liable." (*Id.* at p. 1108 [emphasis in original].)

Defendant State of California, by and through the California Highway Patrol ("Defendant") demurs on the basis that the sole cause of action plead in Plaintiff's complaint is barred by the Government Claims Act. Plaintiff's Complaint contains a single cause of action for general negligence against Defendant. Government Code section 815 bars common law tort liability for public entities. (*Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 899.) Thus, Plaintiff's Complaint fails to state a cause of action against Defendant. An opposition was not filed in response. As such, the demurrer is sustained, without leave to amend.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/14/2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Helena Agri-Enterprises, LLC v. E & S Farming, LLC et al.***
Superior Court Case No. 25CECG02733

Hearing Date: August 18, 2026 (Dept. 503)

Motion: By Plaintiff to Enforce Settlement

Tentative Ruling:

To grant. To approve fees and costs in the combined amount of \$990.00 as sought. To sign the proposed judgment lodged on June 29, 2026.

Explanation:

Code of Civil Procedure Section 664.6 provides as follows: "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court . . . for settlement of the case . . . the court, upon motion, may enter judgment pursuant to the terms of the settlement." It also provides that the parties may request that the court "retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc. § 664.6.) Due to the summary nature of the statute authorizing judgment to enforce a settlement agreement, strict compliance with its requirements is prerequisite to invoking the power of the court to impose a settlement agreement. (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 984.)

Here, plaintiff Helena Agri-Enterprises, LLC ("Plaintiff") submits a writing, signed by the parties, made outside the presence of the court. Further, the writing reflects that this court would retain jurisdiction under section 664.6 to enforce the writing. (Luzania Decl., ¶ 4, and Ex. A thereto.) The agreement contemplated scheduled payments totaling \$330,989.41 to settle the claims of this action. Plaintiff submits that defendant E & S Farming, LLC has made payments but has not complied with the terms of the settlement as of April 28, 2026. (*Id.*, ¶¶ 4, 5.) Plaintiff seeks entry of judgment as to the outstanding balance of \$301,863.90 as well as \$60.00 in costs, and \$930.00 in fees, a total of \$302,583.90. No opposition was filed.

Based on the above, the court finds a valid written signed settlement agreement outside of the presence of the court, and judgment will be entered in accordance with the terms of the written settlement agreement. (Code Civ. Proc., § 664.6, subd. (a).)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/17/2026.
(Judge's initials) (Date)